Intellectual Property & Privacy (IPP)

JM0160



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Lecture 7: Data mining

Recap of Knowledge Clip 7.1

You should understand:

- How could data mining of databases result in acts that come within the scope of:

  - copyright and/or the sui generis right in the database;
  - copyright in works incorporated in the database,

Resulting in potential infringement of these rights (if no authorization is obtained and if data mining does not come within the scope of legally granted exceptions).

Any questions?

Objective & Structure

Objective: Examine and analyze the scope and applicability of exceptions for data mining provided under Articles 3 & 4 of the EU Copyright in the Digital Single Market (DSM) Directive (2019).

Structure:

1. Exceptions for Data Mining under Articles 3&4 of DSM Directive: What is the scope and applicability of Articles 3 & 4 DSM: Who can rely on these exceptions? In what situations? Subject to which conditions?
2. How can contract law constitute an additional barrier to DM of unprotected Databases.

Article 3 DSM: Mandatory exception permitting data-mining for purposes of scientific research

Scope	✓ **Reproductions** and **extractions** of **lawfully accessible** databases protected by copyright and/or sui generis database right for **purposes of scientific research** (commercial + non-commercial). ✓ **Storage** of above reproductions and extractions with **appropriate level of security for purposes of scientific research (including for the verification of research results)**.
Beneficiaries	**Art. 2(1)**: **Research organizations** and **cultural heritage institutions** that have **lawful access** to the database and fulfill the following criteria: ✓ Primary goal is to **conduct scientific research**, OR to conduct both educational activities & scientific research; ✓ On a **non-profit basis** OR pursuant to a **public interest mission** (even if it is a for-profit entity). ✓ For-profit (commercial) undertaking will not have decisive influence on research organization or preferential access to and use of the results generated by the scientific research. ➢ *But,* mere fact that research is carried out in partnership with a for-profit entity will not prevent research organization or cultural heritage institution from benefitting from exception *if* for-profit entity will not obtain preferential access to and use of results. (Recitals 11&12).
Can it be overridden by contract?	**No**. **Art. 7**: Any contractual provision contrary to Art. 3 shall be unenforceable.

What is scientific research under Article 3 DSM?

Indication provided in Recital 12 DSM,

The term 'scientific research' within the meaning of this Directive should be **understood to cover both the natural sciences and the human sciences.** […]. Despite different legal forms and structures, research organisations in the Member States generally have in common that they act either on a not-for-profit basis or in the context of a public-interest mission recognised by the State. Such a public-interest mission could, for example, be reflected through public funding or through provisions in national laws or public contracts.

Conversely, organisations upon which commercial undertakings have a decisive influence allowing such undertakings to exercise control because of structural situations, such as through their quality of shareholder or member, which could result in preferential access to the results of the research, should not be considered research organisations for the purposes of this Directive.

Article 3: Check-list

Is DM undertaken for purposes of scientific research?

Yes

No



Is DM undertaken by an entity whose primary goal is to engage in scientific research on a non-profit basis or pursuant to a public interest mission?

Yes

No



Does entity have lawful access to the database?

Yes

No



Will a commercial entity have preferential access to research results?



Yes

No



Article 4 DSM: Mandatory exception permitting data-mining for any purpose

Scope	✓ **Reproductions and extractions of lawfully accessible databases protected by copyright and/or sui generis database right.** ✓ **Retention of above reproductions and extractions for the duration necessary for purposes of data mining.** ➢ No long-term storage possible as under Art. 3 exception!
Beneficiaries	**Any person** who **lawfully accesses** database.
Can it be overridden by contract?	**Yes**. According to Article 4(3) Owner of copyright/ sui generis database right can **opt-out** of Art. 4 exception by 'expressly reserving rights to data mining' But subject to following conditions (Recital 18): ✓ Publicly available database: opt-out should be signaled in **machine-readable format** (e.g. robot.txt metadata or sitemap) ✓ Not-publicly available database: sufficient signal opt-out in a contract or by unilateral declaration.

What is “Machine Readable”?

No standards are defined under the DSM.

However, **Open Data Directive (2019):**

Article 2(13) defines machine-readable format as: a file format structured so that software applications can easily identify, recognize and extract specific data, including individual statements of fact, and their internal structure.

Recital 35: A document should be considered to be in a machine-readable format if it is in a file format that is structured in such a way that software applications can easily identify, recognise and extract specific data from it.

- Definition pertains specifically to "documents held by public sector bodies“ but was referred to by courts when interpreting the term “machine-readable” under the relevant General Data Protection Regulation provision (Scania, Case C-319/22 [2023]).

Argued that it can be used in the context of the DSM Directive Article 4: In both cases, notion of machine-readability refers to automated processability.

Further reading: Hamann, AI and Machine Readability [JIPITEC 2024].

Article 4: Check-list

Does person engaging in datamining have lawful access to database?

Yes

No



Has rightholder opted-out of Art. 4 exception as set out in Recital 18?

No



Yes



What is **lawful access**?

When the database is accessed via a lawful source [CJEU, C 435/12, *ACI Adam* [2014]; C-463/12 *Copydan* [2015]]

- Access of database is with rightholders' consent.

E.g. Accessing a database made available under an open access license or by an authorized person under a contract that permits such access (Recital 14 of DSM Directive).

If you have accessed content which has been made available *without* rightholders' consent (via an unlawful source), user must **not have known nor had reasonable grounds to know** that it was made available without rightholder's consent.

- But, such knowledge is presumed in the case of use for 'profit-making activities' [e.g., database posted on Internet by a person who has made an unauthorized reproduction of that database in a manner that is copyright infringing. If you access that database for the purpose of engaging in data-mining for a commercial (for-profit) purpose, then your access will not be lawful].

Activity: Summarize key differences between Article 3 & 4 DSM

Article 3 DSM

- Scope of Application
  - ➢ Who? Limited to specific beneficiaries with lawful access.
  - ➢ When? Data mining for purposes of scientific research, commercial & non-commercial.
    - ○ Not available if for-profit entity will obtain preferential access to and use of results.
- Storage of data
  - ➢ Long-term storage of data possible for purposes of scientific research (with appropriate level of security).
- Contractual override
  - ➢ Not possible under Article 7 DSM.

Article 4 DSM

- Scope of Application
  - ➢ Who? Open to anyone with lawful access.
  - ➢ When? Data mining for any purpose, commercial & non-commercial.
- Storage of data
  - ➢ Only for as long as is necessary for purposes of DM (long-term storage of data not possible).
- Contractual override
- ➢ Possible through opt-out exercised as stipulated in Article 4(3) DSM & Recital 18.

How can copyright/database rights infringement arise?

Input (training) stage	Output (generation) stage
1. Creation and curation of the training dataset. ➢ Extraction of content via data mining technologies. ➢ Cleaning and processing of data. ➢ Storage of extracted content until G-AI model is trained. **2. Training the G-AI model** ➢ Loading dataset in batches into computer system's RAM (or VRAM) for processing by the G-AI model. ▪ Possible infringement of reproduction right (copyright), extraction of whole or substantial part (*sui generis* database right).	Risk of "memorization" of copyright protected elements during training stage. Reproduction of copyright protected elements in initial or modified form. ▪ Possible infringement of: ○ Reproduction right ○ Adaptation right ○ Communication to the public right

Getty Images (US), Inc. v Stability AI, Inc. [2023] USDC Delaware

Copyright Claim

- Copyright infringement through reproduction and the creation of unauthorized derivative versions (adaptation) of copyright protected photographs for commercial purposes.

➢ Copyright infringement at input (training) stage can lead to infringement at output (generation) stage.

Getty Images sues AI art generator Stable Diffusion in the US for copyright infringement





An illustration from Getty Images' lawsuit, showing an original photograph and a similar image (complete with Getty Images watermark) generated by Stable Diffusion. Image: Getty Images

/ Getty Images has filed a case against Stability AI, alleging that the company copied 12 million images to train its AI model 'without permission ... or compensation.'

By James Vincent, a senior reporter who has covered AI, robotics, and more for eight years at The Verge.

Feb 6, 2023, 5:56 PM GMT+1 | 16 Comments / 16 New

What if Getty Images was registered under the law of an EU Member State? Could it have claimed sui generis database rights protection for the database?

Could Stable Diffusion have benefitted from the exceptions provided in Articles 3 & 4 of the DSM Directive for possible infringement of copyright (in the images) and the sui generis database right?

Data-Mining for training G-AI models

23 Jun 2025

CJEU to rule on AI and copyright in a landmark case against Google

The complex interplay between artificial intelligence and copyright law is set for a defining moment in Europe.

For the first time, the Court of Justice of the European Union (CJEU) has been asked to assess how copyright rules would apply to generative AI technologies, a crucial step in shaping the future of innovation and content protection in Europe.

Context

The applicant, Like Company, is a Hungarian press publisher managing several online news portals offering copyrighted content. It claims that Google's chatbot, Gemini (formerly Bard), which operates using large language models (LLMs), reproduces and summarises substantial portions of its copyrighted articles without prior authorisation. According to Like Company, Gemini generated responses that echoed significant parts of its original contents, thereby infringing its exclusive rights.

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Related Sectors

Related Locations

Questions referred

The CJEU has been requested to respond to four major questions:

1. **Communication to the Public**: Does the display, in the responses of an LLM-based chatbot, of a text partially identical to press articles that exceeds the "use of individual words or very short extracts," constitute an act of communication to the public under Article 15(1) of the DSM Directive and Article 3(2) of the InfoSoc Directive?

2. **Reproduction Right**: Does the training of an LLM-based chatbot, by learning and modelling linguistic patterns from protected works, constitute an act of reproduction under Article 2 of the InfoSoc Directive and Article 15(1) of the DSM Directive?

3. **Scope of the Text and Data Mining Exception**: If such training is deemed reproduction, is it covered by the Text and Data Mining exception provided in Article 4 of the DSM Directive?

4. **Liability for Outputs**: Can the reproduction of protected press content by a chatbot in response to a user prompt, which either quotes or refers to the original publication, be attributed to the chatbot provider under Article 2 of the InfoSoc Directive and Article 15(1) of the DSM Directive.


LAION wins copyright infringement lawsuit in German court
Published by Andres Guadamuz on September 28, 2024

Kneschke v. LAOIN: Background

LAOIN (Large-scale Artificial Intelligence Open Network), a non-profit research organization, creates datasets for scientific research, including the training of AI-models. The datasets are also made available to the public free of charge.

The dataset contains hyperlinks (URLs) to publicly accessible images and their metadata (e.g., information about the content of the image). It comprises 585 billion corresponding image-text pairs.

The creation of the dataset involved a one-off downloading of each image (i.e., TDM) for purposes of analysis and obtaining correlations on text-image (i.e., compare image with information). The images were automatically deleted thereafter and only hyperlinks were included in the dataset.

Stability AI, used the LAOIN dataset to train its AI model Stable Diffusion.

Kneschke v. LAOIN: Dispute

- Photographer Robert Kneschke using “Have I Been Trained?” found many of his images in LAION’s dataset, including images that had been made available on a publicly available website subject to the following condition:

  “YOU MAY NOT: (…) Use automated programs, applets, bots, or similar methods to access the XXX.com website or any content thereon for any purpose, including, for example, downloading content, indexing, scraping, or caching any content on the website.”

- Kneschke sued LAOIN for copyright infringement on the basis that the one-off downloading of the images during the TDM process resulted in an infringement of his exclusive right to reproduction. LAOIN claimed that the reproduction was permissible under Article 3 DSM.

District Court of Hamburg (27 September 2024)

Research Organization: LAOIN is a research organization for purposes of qualifying as a beneficiary of Article 3. The mere fact that individual members of the defendant, in addition to their activities for the association, also engage in paid activities in for-profit AI-developer companies does not make it lose this status.

Scientific purpose: The concept of scientific research should be broadly interpreted to include the preliminary steps necessary for gaining knowledge. Accordingly, the creation of a dataset of the disputed type, which can serve as the basis for training AI systems, is considered scientific research. Although the creation of the dataset itself may not result in gaining knowledge it is a fundamental step in using the dataset for obtaining insights later on. LAOIN's reproduction was for the purpose of obtaining information on correlations which brings it within the scope of scientific purpose.

No preferential access to results of scientific research by a for-profit entity: The dataset was made available to the public free of charge. That the dataset may also be used by commercially active companies for training or further developing their AI systems is, irrelevant for determining whether the TDM comes within the scope of Article 3 DSM.

EU AI Act [2024]

Article 53

Providers (developers) of general-purpose AI models (GPAI) are obliged to:

(c) put in place a policy to comply with Union law on copyright and related rights, and in particular to identify and comply with, including through state-of-the-art technologies, a reservation of rights (opt-out) expressed pursuant to Article 4(3) of DSM Directive.

(d) draw up and make publicly available a sufficiently detailed summary about the content used for training of the general-purpose AI model, according to a template provided by the AI Office.

Exam Practice: DataMed's database

DataMed is a Dutch company having its registered office and principal place of business in Amsterdam. In 2021 it spent approx. 20 million euros to collect patient data from hospitals across the world on several debilitating diseases (e.g. Alzheimer's disease, Parkinson's disease and Multiple Sclerosis). Approx. 10 million was spent in obtaining data on Alzheimer's disease alone. This makes DataMed's database one of the most expensive databases on debilitating diseases in the EU.

DataMed's employees, arrange this data in an electronic database according to an internationally accepted organizational system that enables the data to be easily analyzed and individually retrieved by medical researchers. This is a task that requires much expenditure of skill, labour and expertise.

Universities can access DataMed's databases by obtaining a contractual license subject to the payment of a monthly subscription. The terms of the contract states that, *"The database can only be consulted (on-screen consultation) for purposes of research. Users are not permitted to engage in datamining of the contents of this database"*.

The Technical University of Eindhoven (TuE) has obtained a contractual license that permits its students and employees to use DataMed's database for their scientific research.

Exam Practice

Evaluation Scheme

How to answer a problem question.

When you are faced with a problem question (i.e., questions based on a given scenario) you can use the following methodology to reach your answer.

1. **Establishment of relevant facts & Identification of relevant legal rules**: Identify the facts in the given scenario that are relevant to answering the question. Then identify applicable legal rules (e.g., originality requirement), and provisions (e.g. Articles in EU Directives) and case law (e.g., *Ryanair* case) that are relevant in solving the question. It is very important that you correctly refer to the relevant provisions of the laws in your answer (e.g. **Article 3** of the **DSM Directive**).
   - Remember that it is advised that you *explain* what the legal rules, legal provisions and case say. E.g., Article 3 of the DSM Directive, provides an exception to the sui generis database right to permit data mining for purposes of scientific research.

2. **Application:** Once you have identified and explained the relevant legal rules and provisions, you must apply them to the facts of the given scenario to reach your conclusion.

3. **Conclusion:** Your conclusion must be clearly stated. It is advised to indicate this at the beginning of your answer (e.g. Yes, the database can obtain protection under the sui generis database right).

Scenario 1:

Ana is employed as a researcher at TuE. She is working in a scientific research project funded by the Dutch Health Ministry that aims to develop an AI-based application for predicting the tendency of a person to develop Alzheimer's disease. For the purpose of training the AI algorithm she uses a software tool to mine the entirety of DataMed's database on Alzheimer's disease in order to identify and evaluate correlations in the data. This results in the entirety of the data on Alzheimer's disease being reproduced and stored on Ana's computer.

Once the algorithm has been sufficiently trained, the training data is immediately deleted.

Question 3: **Would Ana's actions fall within the scope of the sui generis database right** (i.e., would it infringe on the sui generis database right unless an exception applies)? Yes? No? Explain the reasons for your answer [6 points].

Question 4: **Are Ana's actions lawful/unlawful?** Yes? No? Explain the reasons for your answer. [10 points].

Scenario 2:

Bart is a Master's student at TuE. During the Summer vacation he is employed as an Intern in the Research and Development (R&D) department of a private sector for-profit company called RobotIQ.

RobotIQ is is developing the AI-based application for predicting the tendency of a person to develop Alzheimer's disease. As a part of his duties as an Intern, Bart's supervisor at RobotIQ asks him to access DataMed's database using his TuE student account and to mine the entirety of DataMed's database on Alzheimer's disease in order to identify and evaluate correlations in the data. This results in the entirety of the data on Alzheimer's disease being reproduced and stored on Bart's computer.

Once the algorithm has been sufficiently trained, the training data is immediately deleted.

Question 5: **Are Bart's actions lawful/unlawful?** Yes? No? Explain the reasons for your answer [6 points].

Why is this statement FALSE?

Attempts: 8 out of 8

If the contents of a database are not protected by copyright and if the database is not protected either by copyright or the sui generis database then it is safe to engage in data mining.

True	6 respondents	75 %	
False	2 respondents	25 %	✓

-0.33

Discrimination Index ⓘ

25% answered correctly

Legal barriers to data mining

- Copyright (or other IP rights) in the data.
- Copyright/sui generis database right in the database.
- Trade secrecy in the data and/or database.
- Contract law: Contractual terms and conditions that prevent data-mining either of database and/or of individual data.

What if a database is not protected by copyright or the sui generis database right? Does that mean you are free to engage in data mining?

Contract law as an additional barrier to DM of unprotected Databases.

Contract law



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CJEU, *C-30/14, Ryanair Ltd v PR Aviation BV* [2015]

Ryanair is a low-cost airline company. It has been registered as a company in Ireland and its registered office and principal place of business is in Dublin.

The Ryanair website includes a database on flight data containing information on flights schedules, flight routes, and ticket-prices, to enable users to find the best flight options that match their queries and book them online.

Both the website and the database there are made available to members of the public subject to contractual terms including the following that any user to the website is required to accept.

> *You are not permitted to use this website other than for the following, private, non-commercial purposes: (i) viewing this website; (ii) making bookings (…)"*
>
> *'The use of automated systems or software to extract data from this for commercial purposes, ('screen scraping') is prohibited unless the third party has directly concluded a written licence agreement with Ryanair (…)'*

CJEU, *C-30/14, Ryanair Ltd v PR Aviation BV* [2015]

PR Aviation operates a website on which consumers can search through the flight data of low-cost air companies and compare prices. The data is obtained from the websites of individual airline companies (e.g. Ryanair) through an automated (screen-scraping) system.

Ryanair sued PR Aviation for breach of contract.

PR Aviation argued that they are permitted to engage in data mining under the exception to database protection provided in Art. 6(1) of DD which *cannot* be overridden by contract?

- Art. 6(1) of DD: Lawful user can engage in acts necessary for access to and normal use of the contents of a database.

CJEU, *C-30/14, Ryanair Ltd v PR Aviation BV* [2015]

CJEU said **NO!**

- Ryanair's database does NOT benefit from protection either under copyright OR the sui generis right.

- Article 6(1) exception is therefore not applicable.
  - If a database is not protected under the Database Directive (either copyright or sui generis right) the owner has the freedom to adopt of contractual clauses concerning the conditions of use of such a database.

So, exceptions and limitations or rights of lawful users that apply to databases protected under the Database Directive (including datamining exceptions under DSM) **do not apply to unprotected databases!**

Digital Rights Management (DRM)

❖EU Copyright Directive (2001) : Art. 6: Protection against circumvention of DRMs

➢Art. 6(3): Definition of DRM/TPM

Any technology, device or component that, in the normal course of its operation, is designed to prevent or restrict acts, in respect of works or other subject-matter, which are not authorised by the rightholder.

➢Scope of protection:

Prohibits circumvention of any effective technological measures, which the person concerned carries out in the knowledge, or with reasonable grounds to know, that he or she is pursuing that objective.

Can DRM prevent data mining?

Article 3(3) DSM Directive [exception for scientific research]

Rightholders shall be allowed to apply measures to ensure the security and integrity of the networks and databases where the works or other subject matter are hosted. Such measures shall not go beyond what is necessary to achieve that objective.

But,

Art.7(2) DSM Directive,

In the absence of contractual arrangements that provide otherwise, Member States shall ensure that DRM enables beneficiaries who have legal access to database to benefit from the exceptions in Articles 3 & 4 for data-mining.

Alternative strategies for access and use of data.

- If a data(base) made available to the public online (e.g., IMDB)
  - Check whether you have lawful access to the database.
  - Check whether the Terms of Service permit the use.
  - If not, check whether the data(base) is subject to copyright and/or the sui generis database right and you can rely on exceptions under Articles 3 or 4 DSM.
  - If not, ask for permission.

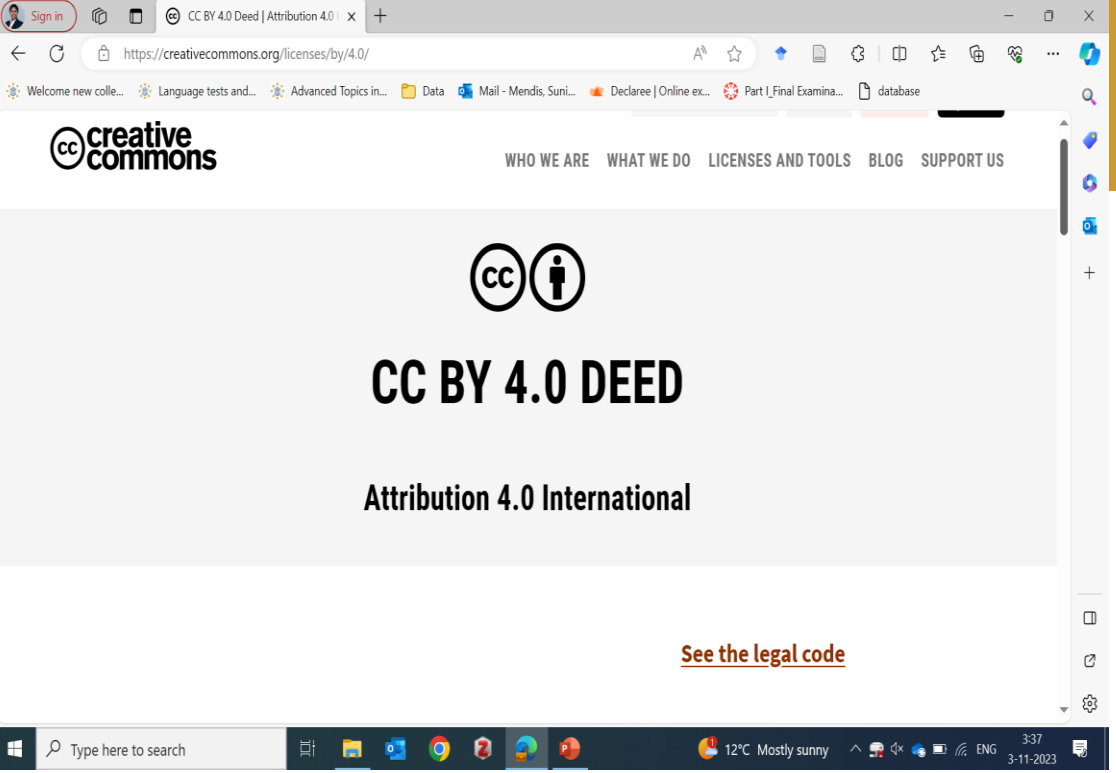
- If not a publicly available data(base) (e.g., data(base) that is accessible to JADS students pursuant to a license).
  - Check whether you have lawful access to the database.
  - Check whether the terms of the license contract under which you have been provided access permit the use.
  - If not, check whether the data(base) is subject to copyright and/or the sui generis database right and you can rely on exceptions under Articles 3 or 4 DSM.
  - If not, ask for permission.

But what if you don't get permission?

You can look at alternative options

Option 1:

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See the deed

Version 4.0 • See the errata page for any corrections and the date of change

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What does Open Public mean?

Public: Standard-form license offered to any member of the public who agrees to abide by terms and conditions of license.

Open: A perpetual, irrevocable license that grants freedom to enjoy specific utilities of work.

Notable characteristics

- Often a reciprocity requirement which has viral nature (Share-Alike): Any modified version (derivative work) of subject-matter distributed under a copyleft license must be distributed under the same copyleft license.

- Viral: The application of a copyleft clause to any subject-matter used in a new work *contaminates* that creation and makes it subject to copyleft clause.

Creative Commons 4.0 license (covers data)

Type	What it means	Your obligations
CC-0	Waives ownership of copyright in the database or data deposited in database.	No legal obligations/conditions for re-use.
CC-BY	Attribution	Must provide credit to the original authors and indicate clearly any changes that were made (if any).
CC-SA	Share-Alike	Sharing of data(base) **OR** an adaptation/modification thereof (derivative work) must be under the same license.
CC-ND	No Derivatives	You cannot adapt or modify (data)base.
CC-NC	Non Commercial	You cannot use database for commercial purposes.

E.g., CC-BY-ND-NC means:
You must give credit to original author(s). You are not allowed to create adapt/modify and you cannot use it for commercial purposes.

Be careful you check the terms of the license and see to what the license applies (e.g., Is it to database or both database and data? Does it cover all data in the database)?

Open Data Commons licenses: Scope



Database: **Open Data Commons Open Database License (ODbL) v1.0**
Contents of Database: **Database Contents License (DbCL) v1.0**



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Attribute: You must attribute any public use of the database, or works produced from the database, in the manner specified in the ODbL.

For any use or redistribution of the database, or works produced from it, you must make clear to others the license of the database and keep intact any notices on the original database by inserting prominently in all relevant locations a statement as follows.

- Database: This {DATA(BASE)-NAME} is made available under the Open Database License: http://opendatacommons.org/licenses/odbl/1.0/.
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Share-Alike: If you publicly use any adapted version of this database, or works produced from an adapted database, you must also offer that adapted database under the ODbL.

Keep open: If you redistribute the database, or an adapted version of it, then you may use technological measures that restrict the work (such as digital rights management) as long as you also redistribute a version without such measures.

Option 2: Check if it qualifies as Public Sector Information (PSI)

New rules have been introduced under the EU Open Data Directive, 2019 and EU Data Governance Act (DGA), 2022 to limiting IP rights barriers to re-use of public sector data (information).

Watch KC 7.2.

New laws to facilitate public access to public sector information (PSI)